



POLICE DEPARTMENT

October 15, 2024

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

Re: CCRB Case No. 202307373 (Incident Date: April 24, 2023) regarding Police Officer
Jermaine Webb, Tax No. 935958 (DADS No. 2024-31619)

Dear Mr. Darche:

The Police Commissioner has reviewed the request for Charges and Specifications in connection with CCRB Case No. 202307373, pertaining to Police Officer Jermaine Webb. Having analyzed the facts and circumstances of this matter, the Police Commissioner has determined that to pursue Charges and Specifications against Police Officer Webb would be detrimental to the Police Department's disciplinary process.

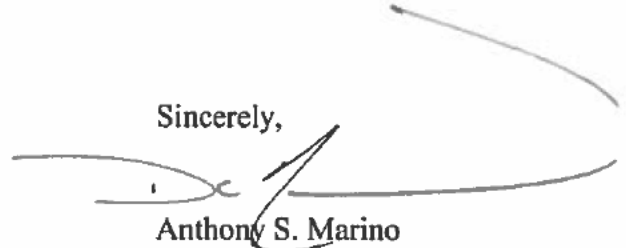
In this matter, the Police Commissioners agrees with Police Officer Webb that he had no intention of striking or contacting the complainant with the barricade. The act of moving the barrier was not unreasonable. Police Officer Webb stated he asked the complainant to move as he was exiting the precinct, to which the complainant responded with an expletive indicating he had no intention of moving. The complainant's actions of restricting Police Officer Webb's movement and inhibiting him from carrying out his duties were unreasonable. Police Officer Webb moved the barrier to allow himself space to exit the secured zone, which was not unreasonable and certainly not excessive.

Additionally, the allegation regarding Police Officer Webb's pushes will result in no disciplinary action. Police Officer Webb's decision to push the complainant back in order to create distance and maintain his zone of safety was appropriate. The body worn camera footage shows once Police Officer Webb moved the barrier, the complainant's demeanor went from standing in place to

highly agitated and aggressive. The body worn camera footage captures the complainant pushing Police Officer Webb's hand away several times. The complainant was clearly displaying aggressive behavior, where a reasonable police officer could fear for his safety. Separately, in regards to the discourtesy allegation, the Police Commissioner agrees with the CCRB for substantiating this allegation.

Police Officer Webb has been a member of the New York City Police Department for over twenty (20) years and has no prior substantiated CCRB complaint, and no prior formal Department disciplinary history. Therefore, as provided for within the 2012 Memorandum of Understanding between the CCRB and the New York City Police Department, the Police Commissioner, in the interest of justice and to retain jurisdiction over this matter, intends to impose no disciplinary action for the allegations regarding the use of force. Furthermore, the Police Commissioner intends to direct the issuance of a Schedule "A" Command Discipline with the forfeiture of one (1) vacation day for the discourtesy allegation.

Sincerely,

A handwritten signature in black ink, appearing to read "Anthony S. Marino", is written over a horizontal line. The signature is fluid and cursive, with a long horizontal stroke extending to the right.

Anthony S. Marino
Deputy Chief
Commanding Officer
Police Commissioner's Office



ERIC L. ADAMS
MAYOR

CIVILIAN COMPLAINT REVIEW BOARD
100 CHURCH STREET 10th FLOOR
NEW YORK, NEW YORK 10007 ♦ TELEPHONE (212) 912-7235
www.nyc.gov/ccrb



October 16, 2024

The Honorable Thomas G. Donlon
Interim Police Commissioner
New York City Police Department
One Police Plaza
New York, NY 10038

Re: CCRB Case No. 202307979 PO Jermaine Webb Tax No. 935958 (DADS No. 2024-30883)

Interim Commissioner Donlon:

I am writing in response to the letter from Deputy Chief Anthony S. Marino, dated October 15, 2024, informing the Civilian Complaint Review Board (hereinafter referred to as “CCRB”) of your intent to dismiss the Charges and Specifications against PO Webb. Pursuant to Paragraph 2 of the April 2, 2012, Memorandum of Understanding between CCRB and the New York City Police Department, I am responding to Deputy Chief Marino’s notification.

Deputy Chief Marino stated that you analyzed the facts and circumstances of this matter and determined that to pursue Charges and Specifications against PO Webb would be detrimental to the Police Department’s disciplinary process. Instead, you intend to dismiss the charges and issue a Schedule “A” Command Discipline with the forfeiture of one (1) vacation day.

The CCRB respectfully disagrees with your assessment. PO Webb’s BWC captured the strike against § 87(2)(b) At 0:33 PO Webb approached § 87(2)(b) and asked him to move; § 87(2)(b) was looking down at his phone and did not respond to PO Webb. At 0:38 seconds, PO Webb tapped § 87(2)(b) and motioned for him to move. At 0:39 PO Webb forcefully moved the gate wide enough to strike § 87(2)(b) Only one second passed between PO Webb motioning for § 87(2)(b) to move and hitting him with the metal gate. There is no direct evidence that § 87(2)(b) refused to move since PO Webb’s BWC camera audio did not capture the initial exchange.

§ 87(2)(b) stood directly in front of the gate and PO Webb should have understood that pushing it open so forcefully would cause the gate to strike § 87(2)(b) While § 87(2)(b) did not immediately comply with any instruction from PO Webb to move away from the metal gate, PO Webb did not allow for a reasonable amount of time to pass before resorting to the use of force to open the gate. Further, § 87(2)(b) was not being aggressive, nor did he take any violent action; § 87(2)(b) was just looking down at his phone and not speaking, when PO Webb struck him with the gate.

Subsequently, PO Webb pushed § 87(2)(b) several times escalating the situation. § 87(2)(b) was not impeding PO Webb from doing his job or walking around him. As an experienced officer of twenty (20) years, PO Webb should have relied on his training and experience to handle the situation in a more professional manner. The excessive force used by PO Webb in this instance was unreasonable.

While the CCRB acknowledges you are the final arbiter of discipline, it respectfully disagrees with your assessment and requests that the NYPD serve Charges and Specifications upon PO Weaver be served.

Respectfully submitted,

Andre Applewhite

p.p., Andre Applewhite, Chief Prosecutor for
Jonathan Darche, Executive Director
NYC Civilian Complaint Review Board



POLICE DEPARTMENT

October 17, 2024

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

Re: CCRB Case No. 202307373 (Incident Date: April 24, 2023) regarding Police Officer
Jermaine Webb, Tax No. 935958 (DADS No. 2024-31619)

Dear Mr. Darche:

The Police Commissioner has reviewed your letter, dated October 16, 2024, concerning the Civilian Complaint Review Board ("CCRB") case involving Police Officer Jermaine Webb. Nevertheless, he maintains that it would be detrimental to the Police Department's disciplinary process to allow the Civilian Complaint Review Board to continue its prosecution of Police Officer Webb for the reasons expressed in my October 15, 2024 letter.

Therefore, as provided for within the 2012 Memorandum of Understanding between the CCRB and the Police Department, the Police Commissioner, in the interest of justice and to retain jurisdiction over this matter, directs the issuance of a Schedule "A" Command Discipline with the forfeiture of one (1) vacation day for the discourtesy allegation. Furthermore, the Police Commissioner directs that no disciplinary action be imposed for the allegations regarding the use of force.

Sincerely,



Anthony S. Marino
Deputy Chief
Commanding Officer
Police Commissioner's Office